

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday September 1 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM
LINE 1

23-CIV-01641 YAN HE VS. COUNTY OF SAN MATEO, ET AL.

YAN HE
COUNTY OF SAN MATEO

SANJIV N. SINGH
SAN MATEO COUNTY ATTORNEY'S
OFFICE

PLAINTIFF'S MOTION TO SEAL CONFIDENTIAL RECORDS FILED IN SUPPORT OF PLAINTIFFS' MOTION FOR
SUMMARY ADJUDICATION AND MOTION IN LIMINE

TENTATIVE RULING:

Plaintiffs' Motion to Seal, Etc. (the "Motion") is GRANTED in part, and DENIED in part.

Background

The operative Fifth Amended Complaint alleges the following allegations in this paragraph: that Decedent infant Brian Pan ("Brian") was born on July 21, 2021, to Plaintiffs Yan He (mother) and Bin Pan (father). On August 7, 2021, while Brian's father was involved in a physical fight with Brian's maternal grandfather, Brian's father seriously injured Brian by dropping him on a table. Three days later, though Brian's father was in police custody without bail, Defendants County of San Mateo, Child Protective Services of San Mateo, and Children and Family Services of County of San Mateo (the "County Defendants") took custody of Brian, his twin, and his toddler brother, and placed the infant twins in the foster care of Defendants James Navarra and Alice Navarra (the "Navarra Defendants"). Plaintiffs allege that Defendant James Navarra was not actually a foster parent. Plaintiffs further allege that Defendants were in their 70s, already had two teenage foster children, had expected to foster only one infant in addition, and were ill-prepared to foster newborn twins in their small house that did not have the required safe-sleeping space for the infants. Plaintiffs allege that on September 13, 2021, shortly after finally having sought respite due to exhaustion, Defendant Alice Navarra had been sleep-deprived for at least 33 days, had drunk alcohol, and when she saw Brian fall asleep in her lap, recklessly decided to fall asleep as well—knowing that Defendant James Navarra was asleep upstairs, and that she had a duty first to place infant Brian in a safe place to sleep, such as a crib. That night, she suffocated Brian to death by allowing herself to fall asleep in the living room couch with him in an unsafe position. The County Defendants had failed repeatedly to evaluate the foster parents and foster home for and after placing them in foster care, including failing to make mandatory visits to the foster home and ensure that it had the required sleep equipment and safe sleep space for each infant. Further, agents of the County Defendants did not disclose to Plaintiffs that the foster parents were the likely cause of Brian's death, instead suggesting that Plaintiff Pan had caused his son's death, so that the County Defendants adopted this narrative to obscure their own liability and facilitate the prosecution of Plaintiff Pan.

Through the Motion, Plaintiffs ask that six exhibits to their counsel's Declaration in support of their motion for summary judgment and motion in limine, which exhibits are lodged with the Court conditionally under seal, be filed under seal.

Plaintiffs' Arguments

Plaintiffs assert that the six exhibits at issue contain the confidential records of a deceased minor, and are subject to this Court's Protective Order issued in connection with a petition pursuant to Welfare and Institutions Code section 827 (the "Protective Order," shown at Charles Decl. in Opp., ¶ 3, & Exh. A). The Protective Order requires that, "Any part of the disclosed records admitted into evidence shall be in a sealed part of the court record." (*Id.*, p.7, in Exh. A.)

Plaintiffs then contradict their assertion as to Exhibits A, A1, A2, and A3, asserting instead that only Exhibits H and I are subject to the Protective Order, and that while the other four are *not* governed by the Protective Order, they pertain to the same person, Brian, whose juvenile records are protected from disclosure, and that the confidentiality interests reflected in the Protective Order apply to these four Exhibits as well.

The County Defendants' Opposition

The County Defendants oppose the Motion as to five of the six exhibits at issue (Exhibits A, A1, A2, A3, and H), asserting that Plaintiffs use the Exhibits to support their motion for summary adjudication as to the medical causation of Brian's death, and their motion *in limine* to exclude any evidence which contradicts the Coroner's determination of its cause. In the event the Court changes its tentative ruling and finds that the records should be sealed, the Court is refraining from going into the specifics of the documents, but in substance, Plaintiffs contend that Brian suffered no complications from his father's having thrown him onto a glass table and the injuries were likely caused at birth or by positional compression asphyxiation.

The Court notes that Exhibit A1 is the supplemental declaration of Daniel Olmos, an attorney, re expert report of Dr. Frank Sheridan, MD which declaration states that the report of Dr. Frank Sheridan, MD is not signed but that the attorney confirms that the report is genuine and authentic. This authentication does not meet the standards for a party bringing a summary judgment. (*Cal.Prac. Guide: Civ. Proc. Before Trial*, §§ 10:107 *et seq.*, 10:118 (TRG June 2026 update); see *Wong v. Stillwater Ins. Co.* (2023) 92 Cal.App.5th 1297, 1324 [discussing admissibility standards for declaration for party opposing summary judgment.].) Since the missing signature is curable (*Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170, as modified on denial of reh'g (Apr. 14, 2026), review denied (July. 22, 2026)), and the hearing motion for summary judgment is not until January 12, 2027, Plaintiffs shall file and serve an admissible declaration by Dr. Sheridan attaching his report by October 15, 2026. This note by the Court is not to be taken as an indication that no other evidence has evidentiary issues, but only that the Court noted this curable deficiency and is providing Plaintiffs an opportunity to correct the deficiency before the hearing.

The County Defendants' counsel reviewed Brian's juvenile case records and the Exhibits at issue, and found that Exhibits A, A1, A2, A3, and H are not among the records produced by the Court as part of his case file. (Charles Decl. in Opp., ¶ 5.) The County Defendants labeled the produced records with Bates stamps numbers CFS-827-00001 through CFS-827-01664 (*id.*, ¶ 4), and in turn produced them to all parties with a copy of the Court's Order and the Protective Order. "None of the records Plaintiff asks the court to seal are Bates stamped." (Opp., 2:1-2.) Therefore, these Exhibits are not subject to the Protective Order, nor are they subject to the restrictions of Welfare & Institutions Code Section 827.

Nonetheless, the County Defendants' counsel found Exhibit I to be part of Brian's juvenile case file, so that it is subject to the Protective Order and the statute, and the County Defendants do not oppose its sealing. (Charles Decl. in Opp., ¶ 6.)

The County Defendants further note that Plaintiffs have placed Brian's cause of death directly at issue in both motions and in filing the instant action, thus waiving any confidentiality interest in these records. Specifically, the Court of Appeal explains that:

under current California statutes both the physician-patient privilege and the psychotherapist-patient privilege are subject to a "patient-litigant" exception (see Evid. Code, §§ 996, 1016; cf. Evid. Code, §§ 958, 972, subds. (a), (c)) and, in the constitutional realm, the privilege against self-incrimination has been held to be subject to a similar "waiver" exception as to matters which are directly relevant to litigation commenced by the holder of the privilege.

(*Britt v. Super. Ct.* (1978) 20 Cal.3d 844, 858 (*Britt*) (terminal case citations omitted).) Further:

the waiver of privilege contemplated by the patient-litigant exception "must be construed not as a complete waiver of the privilege but only as a limited waiver ... with respect to *those mental conditions* the patient-litigant has 'disclose[d] ... by bringing an action in which *they* are at issue'"

(*Britt, supra*, 20 Cal.3d 844, 859 (italics in original) (internal quotations and citation omitted).) While this example in *Britt* addresses the psychotherapist-patient privilege, the same principle applies here: Plaintiffs very clearly have placed the cause of Brian's death at issue, both in the motions which the Exhibits are offered to support, and in the instant lawsuit as a whole.

The Navarra Defendants' Opposition

The Navarra Defendants' Opposition is almost entirely identical to that of the County Defendants, except that the Navarra Defendants argue that even though it is subject to the Protective Order, Exhibit I should not be sealed because it goes to Defendant Alice Navarra's testimony that she requested respite from the County Defendants which she never received, while the County Defendants dispute that she requested respite. So, Exhibit I goes to the issue of comparative fault, and the Navarra Defendants need it at trial. If it were sealed, their defense would be irreparably harmed.

However, the Navarra Defendants acknowledge that Exhibit I falls within the scope of the Protective Order. Pursuant to that Order, Exhibit I must be sealed, as discussed *supra*. (Charles Decl. in Opp., p.7, in Exh. A.) The fact that a document is sealed does not mean that it may not be used as evidence, but only that the document is sealed from the public. The court will need to make a determination if the document is sealed for trial. (Cal. Rules of Court, rule 2.550(a)(3)).

Standard for Sealing Documents

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*)). “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan's concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the Court must expressly find:

- (1) There exists an overriding interest of the third party’s right to privacy that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

The Motion is GRANTED in Part, and DENIED in Part.

Although Plaintiffs' Reply was due by August 25, 2026, no Reply has been filed.

Pursuant to this Court's Protective Order as discussed *supra*, the Motion is GRANTED as to Exhibit I. In light of this Court's Protective Order and the standards to seal this document, the Court specifically finds : there exists an overriding interest that overcomes the right of public access to Exhibit I; the overriding interest supports sealing Exhibit I; a substantial probability exists that the overriding interest will be prejudiced if Exhibit I is not sealed; the proposed sealing is narrowly tailored, to Exhibit I; and no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

Plaintiffs have waived their right to privacy in Exhibits A, A1, A2, A3, and H by placing the cause of Brian's death at issue in the two motions which these five Exhibits are offered to support.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County Defendants shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 2

23-CIV-03902

ELENA MARITI VS. COUNTY OF SAN MATEO, ET AL.

ELENA MARITI
COUNTY OF SAN MATEO

PRO SE

MOTION TO SET ASIDE DEFAULT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 473(b)

TENTATIVE RULING:

The court GRANTS Dignity Health dba Sequoia Hospital (erroneously sued as Dignity Health and CommonSpirit Health (collectively Dignity defendants) motion to set aside default pursuant to Code of Civil Procedure section 473, subdivision (b).

The court grants the parties' requests for judicial notice, but as limited to the applicable law. Most of the documents are not for their truth but for notice only.

The Hon. Nancy L Fineman has been the single assigned judge in this case since it was filed on August 21, 2023 and has presided over multiple hearings in this case. The court file notes that there have been stipulations between the parties to make this case more efficient, e.g. stipulation and order to continue motion for summary judgment and motion to reset ADR scheduling, stipulation and order to file second amended complaint, and stipulation and order granting mutual stipulation reflecting correct Dignity defendant entity. Yet, when the Dignity defendants failed to timely file an answer to the second amended complaint, plaintiff Elena Martiti failed to provide notice to counsel for the Dignity defendants of this missed deadline even though seven days after the responsive pleading was due, plaintiff emailed counsel for the Dignity defendants for an extension to respond to discovery. (Paez Decl., ¶ 13, ex. B.) Instead, without notice, she sought and obtained default on May 20, 2026. This is the type of unprofessionalism and gamesmanship that the court abhors. Even though plaintiff is a pro per litigant, she is held to the same professional standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) As a leading practice guide explains:

[5:69.2] PRACTICE POINTER FOR PLAINTIFFS: If you're representing plaintiff and have had any contact with a lawyer representing defendant, don't even attempt to get a default entered without first giving the lawyer written or telephonic notice of your intent to request entry of default, and a reasonable time within which defendant's pleading must be filed to prevent your doing so. [*Fasuyi v. Permatex, Inc.* (2008) 167 CA4th 681, 701, 84 CR3d 351, 365 (quoting text); *McClain v. Kissler* (2019) 39 CA5th 399, 450-451, 251 CR3d 885, 925-926 & fn. 9 (J. Richman dissent.opn.) (citing text); *Lasalle v. Vogel* (2019) 36 CA5th 127, 135, 248 CR3d 263, 269]

If you give such warning, courts may be less sympathetic to claims by defendant's lawyer of "mistake, inadvertence, surprise, or excusable neglect" in failing to plead on time, and thus less willing to grant discretionary relief under CCP § 473(b), ¶ 5:310 ff.

On the other hand, **if you fail to give such notice, courts will usually set aside the default**, so that the net result may be a waste of your time and your client's money. In addition, taking a "secret" default is a sure way of antagonizing opposing counsel, thereby complicating future handling of the case.

d. [5:70] **Effect of failure to warn: In the absence of a prior warning of default, courts are inclined to grant CCP § 473(b) motions to set aside defaults.** [See *Smith v. Los Angeles Bookbinders Union No. 63* (1955) 133 CA2d 486, 500, 284 P2d 194, 201; *Pearson v. Continental Airlines* (1970) 11 CA3d 613, 619, 89 CR 853, 857; *Fasuyi v. Permatex, Inc.* (2008) 167 CA4th 681, 701, 84 CR3d 351, 365 (quoting text)]

But, in the absence of an "attorney affidavit of fault" (see ¶ 5:292 ff.), such relief is not mandatory; and denial of relief is not necessarily an abuse of discretion. I.e., the failure to warn does not require the court to grant relief. [*Bellm v. Bellia* (1984) 150 CA3d 1036, 1038, 198 CR 389, 390; *Fasuyi v. Permatex, Inc.*, *supra* (quoting text)]

(*Cal. Prac. Guide Civ. Pro. Before Trial*, §§ 5:69.2, 5:50 (TRG June 2026 update) [emphasis added].)

The declarations submitted by Dignity Health's counsel demonstrate that there was an honest mistake in calendaring and the court finds the failure to file a response was because of mistake, inadvertence, and/or excusable neglect under Code of Civil Procedure section 473, subdivision (b), one of the sections set forth in the Dignity defendants' notice of motion. And plaintiff, who had reached past agreements in the past and requested extensions, should have contacted defense counsel before filing the default.

The law favors judgments based on the merits, not procedural missteps. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. "As Justice Mosk put it in *Rappleyea [v. Campbel]* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].)

Accordingly, the court vacates the request for entry of default filed on May 20, 2026, no default judgment shall be entered against the Dignity defendants at this time, the Dignity defendants shall file the proposed answer submitted with its motion within 10 days after notice of entry of order, and if for some reason the answer is not filed, plaintiff shall communicate in writing with defense counsel to remind them of the deadline before seeking another default.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for the Dignity defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

24-CIV-01894

EDWARD YOUNG VS MAINSPRING ENERGY, INC.

EDWARD YOUNG
MAINSRING ENERGY, INC.

VICTORIA B. RIVAPALACIO
HEATHER M. SAGER

COMPLIANCE HEARING

TENTATIVE RULING:

On October 28, 2025 (with written order filed November 21, 2025, this court approved of the settlement in this Class Action and Private Attorney's General Act (PAGA) case and the court set a compliance hearing for September 1, 2026.

On August 16, 2026, Madely Nava of Apex Class Action LLC (Apex), the settlement administrator, filed a declaration setting forth the work that Apex performed to disburse the settlement funds, and to comply with its obligations under the settlement agreement and this court's order.

All disbursements have been made and the time for cashing the checks has passed. (Nava Decl., ¶¶ 2-11. The declaration states:

12. As of the date of this declaration, a total of \$17,368.82 remains uncashed following the check cashing deadline. In accordance with the settlement agreement approved by the Court, the necessary paperwork to transfer the uncashed checks to the California State Controller's Office - Unclaimed Property Fund has been submitted.

13. Per the State Controller's Office of Unclaimed Property – Dormancy Periods, Apex shall hold the uncashed funds for one (1) year from the date of the notification, at which point Apex will then be able to transmit the unclaimed amounts in the Class Member's name. Apex estimated all unclaimed property from this settlement shall be distributed to the State by approximately June 2027.

(Nava Decl., ¶¶ 12, 13.) Thus, except for the disbursement of any unclaimed property to the State, everything has been done to effectuate the settlement. Since the court has the responsibility to make sure that Apex distributes the unclaimed property to the State, the court sets another compliance hearing for August 24, 2027 at 2:00 p.m. in Department 4 with a compliance report/declaration filed and served five court days before the hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the

ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 4

24-CIV-02856

NENAD MILANOVIC, ET AL. VS. ALICIA CHAN, ET AL.

NENAD MILANOVIC
ALICIA CHANMATTHEW D. HALEY
STEPHEN C. TOSCHI

SPECIAL MOTION TO STRIKE PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16 (Anti-SLAPP)

TENTATIVE RULING:

The Special Motion to Strike Pursuant to Code of Civil Procedure Section 425.16 (Anti-SLAPP) by Defendant Yuk Hon Chan (“Defendant”) to the Second Cause of Action for Invasion of Privacy – Intrusion Upon Seclusion in the Third Amended Complaint of Plaintiffs Emma Milanovic, et al. (“Plaintiffs”), is GRANTED.

Although this Motion also purports to be brought on behalf of Defendant Alicia Chan (“Alicia”), the Second Cause of Action is not alleged against her. As such, no cause of action exists against her to strike, and the court limits its ruling to Defendant.

Background

Plaintiffs and Defendant are former next door neighbors. On August 10, 2022, Plaintiff Emma Milanovic (“Emma”), who was four years old at the time, was outside playing with her family when Alicia started to back her vehicle out of the garage at her property where Emma was sitting on the driveway. Alicia struck Emma with her vehicle. Plaintiffs bring this action for the injuries sustained by Emma as well as the rest of the family that observed the accident.

The Third Amended Complaint (“TAC”) filed on May 19, 2026 is the operative pleading. The TAC added a Second Cause of Action for Invasion of Privacy – Intrusion into Private Affairs. This cause of action alleges that on September 17, 2022, without Plaintiffs’ knowledge or consent, Defendant stood in the upstairs bedroom of his home and secretly recorded video and photographs of Plaintiffs in their backyard/back deck. (TAC, ¶ 41.) The TAC alleges that Defendant’s intentional, surreptitious recording and photographing of Plaintiffs while in their backyard/back deck of their residence without their knowledge or consent, intruded upon their seclusion. (TAC, ¶ 39.) At the time Defendant recorded Plaintiffs, Plaintiffs were engaged in ordinary, intimate family life. (TAC, ¶ 42.) Defendant later disseminated this secret video and photographs to his State Farms claims adjuster, admitting that his purpose in capturing and disseminating the video was to show that Emma seemed to have recovered well and to communicate that assertion to the insurance carrier. (TAC, ¶ 44.) Defendant further acknowledged that he was not directed by anyone to take the video and photographs. (*Ibid.*) Plaintiffs allege on information and belief that Defendant took the video and photograph for the primary purpose of attempting to minimize the injuries sustained by Plaintiffs. (TAC, ¶ 45.)

Defendants move to strike the Second Cause of Action pursuant to Code of Civil Procedure section 425.16 (anti-SLAPP statute).

Legal Framework for Anti-SLAPP

“A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).) “Litigation of an anti-SLAPP motion involves a two-step process.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 (*Bonni*)). “First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ Second, for each claim that does arise from protected activity, the plaintiff must show the claim has ‘at least ‘minimal merit.’” (*Bonni, supra*, 11 Cal.5th, at p. 1009, citing *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1061 (*Park*)). “If the plaintiff cannot make this showing, the court will strike the claim.” (*Bonni, supra*, 11 Cal.5th at p. 1009, citing *Park, supra*, 2 Cal.5th at p. 1061.)

Plaintiff's claim arises from protected activity

To satisfy the “arising from” requirement of Section 425.16, defendants must demonstrate that the protected activity comes within one of the four categories set forth in section 425.16, subdivision (e). (*Park, supra*, 2 Cal.5th, at p. 1063.) Acts in furtherance of a defendant’s right of petition or free speech in connection with a public issue include: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; (4) or any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).) Defendant contends that Plaintiff’s claim arises from activity protected under sections 425.16, subdivisions (e)(1) and (e)(2).

A claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted. (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884, citing *Park, supra*, 2 Cal.5th at pp. 1060, 1063.) To determine whether the claim arises from protected activity, the court must consider the elements of the challenged claim and what actions by defendant supply those elements and form the basis of liability. (*Wilson, supra*, at p. 884.) The court then evaluates whether defendant has shown that those actions fall within one or more of the four categories protected by the anti-SLAPP statute. (*Ibid.*)

A privacy violation based on the common law tort of intrusion has two elements: (1) the defendant must intentionally intrude into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy; and (2) the intrusion must occur in a manner highly offensive to a reasonable person. (*Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 286.) Thus, this cause of action is based on Defendant's taking of the video and photographs as intruding into Plaintiffs' privacy, even though the TAC also alleges that Defendant later disseminated them to Defendant's insurance company. However, the subsequent dissemination is not an element of this claim, and thus the court does not consider it for purposes of this Motion.

Plaintiffs assert that the secret and covert recordings by Defendant cannot constitute protected activity. (See *Kimmel v. Goland* (1990) 51 Cal.3d 202; see also *Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193 Cal.App.4th 435, 445-446.)⁹³ Cal.App.4th 435 206-207.) However, these cases are distinguishable because they involved alleged criminal activity. (See *Kimmel, supra*, at p. 212; see also *Gerbosi, supra*, at pp. 444-445.) Plaintiffs do not allege any criminal activity by Defendant here, but rather they allege a common law cause of action for invasion of privacy. It is common that defendants videotape plaintiffs to try to establish that the plaintiffs are not as injured as they claim. (See *Cal. Prac. Guide: Civ. Proc. Before Trial*, § 8:243 (TRG June 2026 update) [discussing whether work product protection attaches to photos, videos, surveillance films].)

Plaintiffs also contend that Defendant cannot establish protected activity because this claim is based on Defendant's conduct, and section 425.16(e)(1) and (e)(2) protect a written or oral statement or writing. Plaintiffs read section 425.16 too narrowly. (See Code Civ. Proc., § 425.16, subd. (b)(1) (emphasis added) ["A cause of action against a person arising from any *act* of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."].) Further, Evidence Code section 250 defines "writing" as "handwriting, typewriting, printing, photostating, photographing, photocopying, transmitting by electronic mail or facsimile, and every other means of recording upon any tangible thing, any form of communication or representation, including letters, words, pictures, sounds, or symbols, or combinations thereof, and any record thereby created, regardless of the manner in which the record has been stored."

Defendant asserts that the act of gathering evidence in anticipation of litigation constitutes protected activity. (See *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115.) In *Briggs*, the court found that just as communications preparatory to or in anticipation in the bringing of an action or other official proceeding are within the protection of the litigation privilege under Civil Code section 47(b), such statements are equally entitled to the benefits of section 425.16. (*Ibid.*) As already discussed, section 425.16(e)(1) and (e)(2) are not limited only to statements, but apply to writings as well. Defendant took the video and photographs after

seeing Emma for the first time after the accident without a cast or sling on her arm, and decided to gather evidence in case a claim followed. (Defendant's Decl., ¶ 2.)

Plaintiff argues that the video and photographs may not be construed as in anticipation of litigation because Defendant took them in September 2022, but Plaintiff did not file this action until May 10, 2024. However, a prelitigation statement may be petitioning activity even though litigation has not commenced if a statement concerns the subject of the dispute and is made in anticipation of litigation contemplated in good faith and under serious consideration. (*Bailey v. Brewer* (2011) 197 Cal.App.4th 781, 789-790.) In determining whether a statement was made in anticipation of litigation contemplated in good faith and under serious consideration, the *Bailey* court looked at how this test was applied to cases involving the litigation privilege under Civil Code section 47. (*Id.*, at p. 790, citing *Flatley v. Mauro* (2006) 39 Cal.4th 299, 322-323 [although the scope of § 425.16 and Civ. Code, § 47 are not identical, the latter may be used "as an aid in construing the scope of section 425.16, subdivision (e)(1) and (2) with respect to the first step of the two-step anti-SLAPP inquiry—that is, by examining the scope of the litigation privilege to determine whether a given communication falls within the ambit of subdivision (e)(1) and (2)"].) If the statement is made with a good faith belief in a legally viable claim and in serious contemplation of litigation, then the statement is sufficiently connected to litigation and will be protected by the litigation privilege. (*Ibid.*) Further, preliminary investigation into potential or actual litigation also constitutes protected activity. (*Tichinin v. City of Morgan Hill* (2009) 177 Cal.App.4th 1049, 1068-1069.) Defendant's declaration supports that he took the video and photographs to gather evidence in the event of a claim. (Defendant's Decl., ¶ 2.) Plaintiffs provide no evidence to show Defendant took the video and photographs for any other purpose.

Further, plaintiffs' investigations into whether a viable claim can be asserted and won are protected. (*Tichinin v. City of Morgan Hill* (2009) 177 Cal.App.4th 1049, 1068-1069.) So too should defendants have the right to investigate, including collect evidence, to determine if there is a viable defense.

Accordingly, the court finds that Defendant establishes the alleged conduct constitutes protected activity.

Plaintiffs fail to show that this claim has at least minimal merit

As previously set forth, the elements of a privacy violation based on the common law tort of intrusion has two elements: (1) the defendant must intentionally intrude into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy; and (2) the intrusion must occur in a manner highly offensive to a reasonable person. (*Hernandez, supra*, 47 Cal.4th at p. 286.) "Actionable invasions of privacy must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right." (*Mezger v. Bick* (2021) 66 Cal.App.5th 76, 87, citing *Hill v.*

National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 37.) The impact on the plaintiff's privacy rights must be more than "slight or trivial." (*Ibid.*)

As to the first element, the plaintiff must show that the defendant penetrated some zone of physical or sensory privacy surrounding, or obtained unwanted access to data about the plaintiff. (*Shulman v. Group W Productions, Inc.* (1998) 18 Cal.4th 200, 231-232.) The plaintiff must have an objectively reasonable expectation of seclusion or solitude in the place, conversation or data source. (*Id.*, at p. 232.) To determine whether such a reasonable expectation of privacy exists, the court considers such factors as (1) the identity of the intruder, (2) the extent to which other persons had access to the subject place, and could see or hear the plaintiff, and (3) the means by which the intrusion occurred. (*Sanders v. American Broadcasting Companies, Inc.* (1999) 20 Cal.4th 907, 923.)

Defendant took the video and photographs of Plaintiffs while they were on their backyard deck, which was visible from Defendant's master bedroom. (Defendant's Decl., ¶ 2.) Defendant's blinds were open so he did not have to move them to see Plaintiffs. (*Ibid.*) This deck is adjacent to the publicly accessible Foster City waterway. (*Id.*, ¶ 3; Delkhah Decl., Exh. B.) People have a full view of all decks when they pass by on the waterway. (*Id.*, ¶ 4.) All neighbors have a full view of each other's decks at all times from their own decks. (*Id.*, ¶ 6.)

Plaintiff responds that Defendant testified that the backyard of his home is a private area, and that a jury could find a reasonable expectation of privacy for Plaintiffs' fenced backyard. (Haley Decl., Exh. 1, pp. 95:18-19.)

However, considering the factors set forth in *Sanders*, the court finds that Plaintiff fails to show an objective reasonable expectation of privacy in their backyard from Defendant. First, Defendant lived next door to Plaintiffs and took the video and photographs from his bedroom. Second, Plaintiffs' deck was also visible from the publicly accessible waterway. Third, the means were the visibility of Plaintiffs' deck through Defendant's window. Under these circumstances, the court finds that Plaintiffs fail to show an objectively reasonable expectation of seclusion or solitude from being visible to Defendant.

Moreover, even if the court were to find that Plaintiffs presented some evidence to support Defendant intruded on a place where they had an objectively reasonable expectation of privacy, Plaintiffs fail to provide any evidence that would support the second element. The second element involves a "policy" determination as to whether the alleged intrusion is "highly offensive" under the particular circumstances. (*Hernandez, supra*, 47 Cal.4th at p. 287.) Relevant factors include the degree and setting of the intrusion, and the intruder's motives and objectives. (*Id.*, citing *Shulman, supra*, 18 Cal.4th at p. 236.) As already discussed, Defendant took the video and photographs from the bedroom of his own house that overlooked Plaintiff's backyard to show Emma recovered well following the accident. Therefore, it is difficult to see how taking

such video and photographs to be used in litigation to try to defeat Plaintiff's claim of injury would be highly offensive to a reasonable person.

The Second Cause of Action is hereby STRICKEN from the TAC.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

25-CIV-03590

ALICIA WOODFALL-JONES VS. MATT FABRY, ET AL.

ALICIA WOODFALL-JONES
MATT FABRYARIEL STRAUSS
ROBERT CARROLL MAY

DEFENDANTS AND REAL PARTIES IN INTEREST CROWN CASTLE FIBER LLC AND VERIZON WIRELESS' DEMURRER TO PETITIONER ALICIA WOODFALL-JONES' VERIFIED PETITION FOR WRIT OF MANDATE AND DECLARATORY RELIEF

TENTATIVE RULING:

The court rules on Crown Castle Fiber LLC's (Crown Castle) demurrer as follows:

As a preliminary matter, the court notes that there is an application to appear as counsel pro hac vice. Since out-of-state attorneys cannot work on a case until they have been admitted pro hac vice in this state, the court would hear the application through an ex parte application. The parties are reminded that all parties and the State Bar must receive notice of the ex parte. See the court's local rules for the procedures for ex parte applications.

The parties are to APPEAR.

First, the court is unfamiliar with this statutory scheme and will need to obtain a more straightforward explanation of the statutory scheme and a chronology of events in this case.

Second, it appears to the court that the parties are attempting to have the court decide key issues on demurrer through both sides requesting judicial notice of documents, but that there are contested facts that cannot be resolved on demurrer. As explained by one Court of Appeal:

"Judicial notice may not be taken of any matter unless authorized or required by law." (Evid.Code, § 450.) Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452. A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute. (*Post v. Prati* (1979) 90 Cal.App.3d 626, 633, 153 Cal.Rptr. 511.) Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9, 84 Cal.Rptr.2d 843, 976 P.2d 214.) *StorMedia* stated: "In ruling on a demurrer, a court may consider facts of which it has taken judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) This includes the existence of a document. When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374 [228 Cal.Rptr. 878].)" (*Ibid.*)

Joslin v. H.A.S. Ins. Brokerage, supra, 184 Cal.App.3d at page 374, 228 Cal.Rptr. 878 stated: “Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. (See *Middlebrook–Anderson Co. v. Southwest Sav. & Loan Assn.* (1971) 18 Cal.App.3d 1023, 1038 [96 Cal.Rptr. 338].) On a demurrer a court's function is limited to testing the legal sufficiency of the complaint. (*Marina Tenants Assn. v. Deauville Marina Development Co.* (1986) 181 Cal.App.3d 122, 127 [226 Cal.Rptr. 321].) ‘A demurrer is simply not the appropriate procedure for determining the truth of disputed facts.’ (*Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879 [138 Cal.Rptr. 426].) The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable. (See *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605 [176 Cal.Rptr. 824].)” *Joslin, supra*, at page 375, 228 Cal.Rptr. 878 stated further, “ ‘judicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.’ (*Cruz v. County of Los Angeles* (1985) 173 Cal.App.3d 1131, 1134 [219 Cal.Rptr. 661].)”

(*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113–114; *Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 712–713.)

The court wishes to discuss with the parties whether the court must decide disputed facts and/or the interpretation of documents in this demurrer and, whether it is necessary or would be better to have the court decide the matter on an evidentiary record. The issue of plaintiff's standing appears tied to the issue of when Crown Castle's application was approved.

2:00 PM

LINE 6

25-CIV-06742

TONG LUO, ET AL. VS. COGNITION AI, INC.

TONG LUO
COGNITION AI, INC.

ELIZABETH PIPKIN
JOHN D. PERNICK

PLAINTIFFS AND CROSS-DEFENDANTS TONG LUO'S AND MIN HUI'S MOTION TO STRIKE THE PUNITIVE DAMAGES PRAYER IN DEFENDANT AND CROSS-COMPLAINANT COGNITION AI'S CROSS-COMPLAINT

TENTATIVE RULING:

Plaintiffs/Cross-Defendants, Tong Luo's and Min Hui's motion to strike the prayer for punitive damages in the cross-complaint filed by Defendant and Cross-Complainant, Cognition AI, Inc., on April 30, 2026, is GRANTED. Leave to amend is GRANTED. Cross-Complaint Cognition AI, Inc. ("Cognition") has ten (10) days from service of written notice of entry of order to file and serve an amended Cross-Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

Background

Defendant/Cross-Complainant Cognition is a Bay Area artificial intelligence company. In March 2024, Cognition leased plaintiffs' one-acre gated Atherton home and property (hereinafter "subject property").

Cognition's cross-complaint alleges that plaintiffs/cross-defendants knew or should have known the property suffered from the following undisclosed defects, safety hazards, and code violations:

- inoperable carbon monoxide detectors;
- defective swimming pool lighting that a technician determined posed a serious risk of harm;
- the entry gate failed four times in four weeks, repeatedly sticking open and leaving the property exposed, which forced Cognition to hire outside security;
- plumbing failed beneath the driveway, cutting off water service for days and requiring the driveway to be excavated at a cost of roughly \$27,000, due to alleged ineffective installation; and
- the HVAC system failed across much of the house.

Cross-Defendants allegedly disclosed none of this before tendering possession to Cognition, and they refused to remediate or reimburse for these expenses after Cognition gave them notice. The cross-complaint raises four causes of action: breach of contract; breach of implied warranty of habitability; reimbursement; and unjust enrichment and requests compensatory, exemplary and punitive damages. (Declaration of James O'Donnell iso mtn to strike, Ex. A [Cross-Compl.] p.9.)

Cross-defendants filed the instant motion to strike the prayer for exemplary and punitive damages pursuant to Code of Civil Procedure sections 435 and 436 because the operative cross-complaint does not sufficiently allege the requisite oppressive, malicious or fraudulent conduct as defined by Civil Code section Civil Code section 3294, subdivision (a) which necessary to support an award for punitive damages. Additionally, the request is barred by the economic loss rule which precludes recovery in tort (exemplary damages) for a breach of contractual duty(s).

Cross-complainant opposes, contending it is well settled California law that a tenant may sue its landlord in tort for breach of the implied warranty of habitability, and where, as here, the landlord acts in conscious disregard of the tenant's safety, punitive damages are available under Civil Code section 3294. Moreover, the cross-complaint does not only allege contract claims and is supported by *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903. Because a motion to strike tests the pleading, not the proof, and the Court must accept as true the allegations in the Cross Complaint, construe them liberally, and read them as a whole, the cross-complaint pleads a basis for punitive damages.

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) Code of Civil Procedure section 435 is “specifically applicable to cross-complaints.” (Code Civ. Proc. § 435, Law Revision Commission Comments.) Under this chapter, a court may, upon motion or in its discretion, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading” and “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436, subs. (a)-(b).) An “irrelevant matter” is an allegation that “is not essential to the statement of a claim or defense,” “is neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431.10, subs. (b)-(c).) Specifically, “a motion to strike may lie where the facts alleged do not rise to the level of ‘malice, fraud or oppression’ required to support a punitive damages award. [See *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 CA4th 53, 63, 119 CR3d 166, 175—allegations of gender discrimination did not show defendant acted with requisite state of mind for punitive damages]” (*Cal. Prac. Guide Civ. Pro. Before Trial*, § 7:186 (TRG June 2026 update.)

Discussion

In order to state a prima facie claim for punitive damages, a pleading complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civ. Code, § 3294, subd. (c)(2).) “Malice is defined in the statute as conduct intended by the defendant to cause injury to the

plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*College Hospital, Inc., supra*, 8 Cal.4th at 725.) To demonstrate malice, a proponent “must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896.) After *Taylor*, the Legislature amended the “malice” standard to add the requirement that malicious conduct under section 3294 be shown to be “despicable” and “willful.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211.) Consequently, a punitive damages request must be supported by facts that show both a willful disregard for the probable consequences of one’s actions and despicable conduct.

Despicable conduct is

...conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. ... mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages.... Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.

(*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287 [quoting *Taylor, supra*, and *Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.* (1986) 185 Cal.App.3d 1149, 1154.].)

The allegations supporting a request for punitive damages must be alleged with specificity; conclusory allegations without sufficient facts are not enough. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) “Mere negligence, even gross negligence, is not sufficient to justify such an award” for punitive damages.” (*Kendall Yacht Corp. v. United California Bank* (1975) 50 Cal.App.3d 949, 958 [“At root, both malice and oppression have to do with an ‘evil motive, the Animus malus, shown by malice in fact or by its allied malign traits and characteristics evidenced by fraud or ‘oppression.’ An award of exemplary damages cannot be based on mere speculation; it depends instead on a definite showing of a willingness to vex, harass, or injure consistent with a wrongful intent to injure.”] quoting *Roth v. Shell Oil Co.*, 185 Cal.App.2d 676, 681—682.].)

Here, the basis for punitive damages is set forth in the cross-complaint’s third cause of action for breach of implied warranty of habitability, enumerated as follows: “(a) failing to provide functioning carbon monoxide detectors as required by law; (b) tendering and maintaining a defective electric entry gate that compromised the security of the premises; (c) tendering and maintaining defective electrical systems, including dangerous swimming-pool lighting; (d) tendering and maintaining defective plumbing, including pipes and equipment installed in a defective manner that resulted in a major underground leak; (e) tendering and maintaining a defective HVAC system that failed to provide adequate climate control to substantial portions of the Property; and (f) failing to make timely and adequate repairs after notice of these conditions.” (See O’Donnell Decl. ¶ 7; Ex. A, ¶ 34, and Ex. B [meet and confer correspondence regarding the

basis for punitive damages].) Paragraph two of the cross-complaint lists the fact that cross-defendants had not packed their belongings or moved, all of which Cognition had to do at their own expense and paragraph 3 of the cross-complaint states what is restated in paragraph 34, in nearly identical form: “the Property suffered from numerous undisclosed defects and code violations, including missing carbon monoxide detectors (which are required by California law), a defective entry gate that repeatedly failed and exposed the Property to security risks, an electrical defect in the swimming-pool lighting that posed a safety hazard, a major plumbing failure beneath the driveway caused by defective original construction, recurring HVAC failures, and a host of additional structural and mechanical issues that required Cognition to incur tens of thousands of dollars in unbudgeted repairs that were Cross Defendants’ responsibility.” (O’Donnell Decl. Ex. A ¶ 3.)

These bald allegations, without further factual information, do not support a prayer for punitive damages because they do not demonstrate facts showing both a willful disregard for the probable consequences of one’s actions and intolerable conduct to the point of it being despicable, oppressive, fraudulent, or done with malice.

Lastly, the Court finds *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, an authority relied upon by cross-complainants for their ability to seek punitive damages, is factually distinguishable from the case at bar. In *Stoibner*, a tenant sued his former landlord and rental agents for damages allegedly resulting from dilapidated and unsafe condition of rented premise which included (but not limited to) leaking sewage, defective dangerous electrical wiring [in the residence], structural weaknesses in the walls, deteriorated flooring, falling ceiling, leaking roof, dilapidated doors, broken windows. (*Id.* at 912.) There was also a notice to vacate *and demolish* from the county health department attached to the complaint which listed “heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, overfused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard.” (*Ibid.*) While the case demonstrates that punitive damages may in the appropriate circumstances be recovered under a breach of habitability claim based upon a proper showing of fraud, oppression and/or malice, the conclusory facts alleged here do not meet the pleading standard required to state a punitive damage claim.

Accordingly, plaintiffs/cross-defendants’ motion to strike the request for punitive and exemplary damages is GRANTED WITH LEAVE TO AMEND.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare a written order consistent with this ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

26-CIV-02132

JESSICA CASTIGLIONE VS INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856

JESSICA FAWN CASTIGLIONE
INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856LISA L. GYGAX
SUSAN GAREA

DEMURRER TO DEFENDANT TEAMSTERS LOCAL 856 TO COMPLAINT OF CASTIGLIONE

TENTATIVE RULING:

This is a complaint for damages brought by Plaintiff Jessica Castiglione (plaintiff) in which she complains of “systemic illegal employment practices” committed by defendants International Brotherhood of Teamsters Local 856 (Local 856), International Brotherhood of Teamsters (IBT), Sean O’Brien, Fred Zuckerman, Chris Rosell, Peter Finch, Alex Topete, Wilver Arevalo, and Fuad Osman (collectively, Defendants). (Complaint, filed Mar. 23, 2026, ¶ 2.)

Local 856 now demurs to all seven causes of action in Plaintiff’s complaint. (NODD, filed May 22, 2026.) Local 856 demurs to all claims on the grounds that it was never Plaintiff’s employer and is therefore not a proper defendant to any of Plaintiff’s causes of action. (*Id.* at p. 1:25-26.) Local 856 also demurs to each cause of action individually on separate grounds.

Legal Standards

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov’ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code Civ. Proc., § 430.50, subd. (a).) The defect must appear from the face of the pleadings or judicially noticeable facts. (*Blank v. Kirwant* (1985) 39 Cal.3d 311, 318.)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a “demurrer must dispose of an entire cause of action.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) “The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (see Code Civ. Proc., § 452),

and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

Demurrer to all claims based on no alleged employment relationship

Local 856's demurrer to all claims on the grounds that it is not a proper defendant is OVERRULED.

"A complaint must contain '[a] statement of the facts constituting the cause of action, in ordinary and concise language.' (Code Civ. Proc., § 425.10, subd. (a)(1).) This fact-pleading requirement requires the plaintiff to allege *ultimate* facts that apprise the defendant of the claim's factual basis. (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415, 37 Cal.Rptr.3d 528.) Stated another way, the 'complaint must allege the ultimate facts necessary to the statement of an actionable claim.' (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1390, 272 Cal.Rptr. 387.)" (*Yalung v. State of California* (2023) 98 Cal.App.5th 71, 80, emphasis original.)

" 'Ultimate facts' are those that raise the issues on which the *right to recover* depends—i.e., the essential elements of the cause of action. All the facts that are *material* to the cause of action—i.e., the facts that make a difference to the outcome of the case—must be alleged (*see* ¶ 6:400, 10:230, 10:271). [*Estes v. Eaton Corp.* (2020) 51 CA5th 636, 643, 265 CR3d 202, 208, fn. 2 (quoting text); *Foster v. Sexton* (2021) 61 CA5th 998, 1027, 276 CR3d 172, 197—'distinguishing "ultimate facts" from "evidentiary facts" and "legal conclusions" can be difficult' (citing text); *Thomas v. Regents of Univ. of Calif.* (2023) 97 CA5th 587, 610-611, 315 CR3d 623, 641 (citing text)] [¶] By contrast, allegations of unnecessary detail and generalized argument may be objectionable as 'evidentiary' pleading and 'legal conclusion,' respectively." (Weil & Brown, *Cal. Prac. Guide: Civ. Proc. Before Trial* (TRG June 2026 update) ¶ 6:124, emphasis original.)

"The distinction between 'ultimate facts' and 'evidentiary' matters is of diminishing importance because a complaint will be upheld if it provides the defendant with 'notice of the issues sufficient to enable preparation of a defense.' [*Doe v. City of Los Angeles* (2007) 42 C4th 531, 549-550, 67 CR3d 330, 344] [¶] Thus, plaintiff need only plead such facts as are necessary 'to acquaint a defendant with the *nature, source and extent* of his claims.' [*Doe v. City of Los Angeles*, *supra*, 42 C4th at 550, 67 CR3d at 344 (emphasis added); *Prue v. Brady Co./San Diego, Inc.* (2015) 242 CA4th 1367, 1376, 196 CR3d 68, 75—'a complaint is adequate so long as it apprises the defendant of the factual basis for the claim']" (*Cal. Prac. Guide, supra*, at ¶ 6:128.)

Here, Plaintiff alleges that Local 856 was her employer (Complaint, ¶ 11); that Plaintiff's work for Local 856 required her to travel and convince target employees to unionize their own workplaces (*Id.* at ¶ 13); that both IBT and Local 856 directed Field Organizers and ordered Field Organizers' work schedule (*Id.* at ¶ 19); that Local 856 collected union dues and retirement fees (*Ibid*); that both IBT and Local 856 supervised Plaintiff (*Id.* at ¶ 24); and that both IBT and Local 856 were responsible for adhering to requirements with respect to Plaintiff and aggrieved employees such as paying overtime, providing meal and rest breaks, etc. (*Id.* at ¶ 26.)

Plaintiff also alleges repeatedly that IBT and Local 856 “blur[red] the line as to who is the employer” (*Id.* at ¶¶ 13, 19, 24) and that the two entities “would never clearly answer plaintiff’s question of who her official employer actually was until after she was terminated.” (*Id.* at ¶ 25.) Plaintiff alleges that the two entities had “a unity of interest and goals along with of [sic] the orchestrated conduct between the two agencies is a conspiracy to control workers, deny rights,” etc., (*Id.* at ¶ 13) and that they “are both liable employers in the same manner as any temp agency contracting a worker, supervised by the work provider.” (*Id.* at ¶ 26.) Plaintiff includes numerous allegations in her individual causes of action referring to the violations committed by “Defendants.”

Plaintiff has alleged sufficient facts to establish an employment relationship in general. Her allegations go beyond a conclusory statement because she alleges that Local 856 directed her and ordered her work schedule, was responsible for her wage deductions, and supervised her. Additionally, Plaintiff notes in the Complaint and in her opposition that she believes IBT and Local 856 were acting in concert and that some information about her employment status was withheld from her which may be further revealed through discovery. These allegations are sufficient to withstand a general demurrer. (see *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451.)

Local 856’s arguments on this issue focus on the definition of employment in the context of Labor Code violations. Under *Martinez v. Combs* (2010) 49 Cal.4th 35, 64, there are multiple definitions of employment: “To employ, then, under the IWC’s definition, has three alternative definitions. It means: (a) to exercise control over the wages, hours or working conditions, *or* (b) to suffer or permit to work, *or* (c) to engage, thereby creating a common law employment relationship.” Plaintiff has sufficiently alleged an employment relationship according to this definition based on the allegations described above.

First cause of action – Promissory Fraud

Local 856’s demurrer to the first cause of action is SUSTAINED, with leave to amend.

Local 856 raises two grounds for demurring to the first cause of action: ERISA preemption and failure to meet heightened pleading requirements. (MPA, p. 9:16-17.)

First, Local 856 argues that Plaintiff alleges damages based on loss of funds in the form of deductions for union dues and retirement contributions, but that litigation of retirement contributions is governed by ERISA and therefore preempted from state court litigation. (*Id.* at p. 9:18-20.) However, since a general demurrer cannot be brought to only a part of a cause of action (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948), this ground fails because it does not dispose of the entire cause of action. Plaintiff’s first cause of action alleges in part that she was “originally led to believe she was joining and working for the LOCAL IBT union, made to pay dues but was excluded from the union membership she was forced to pay for and not protected from the very harms that the Teamster union protects employee members

from.” (Complaint, ¶ 40.) Because the cause of action is premised on more than the pension plan claims, ERISA preemption cannot be grounds for sustaining the demurrer.

Second, Local 856 also argues that Plaintiff’s fraud allegations fail to meet the heightened pleading standards for a fraud claim. The law does require specificity in pleading fraud, but the heightened pleading standard for fraud “is relaxed when the allegations indicate that the defendant must necessarily possess full information concerning the facts of the controversy” or “when the facts lie more in the knowledge of the opposite party” (*Tarmann v. State Farm Mutual Auto-Mobile Ins. Co.* (1992) 2 Cal.App.4th 153, 158 (cleaned up; *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216–217.) However, even with a liberal reading of the complaint, it is deficient to plead fraud.

Local 856 it is not an individual who would be expected to know what he or she said, but a union. Plaintiff does not provide specificity about who made these representations although they were made directly to her. For example, Plaintiff alleges that during the intake process, she “was informed” she would be paying dues and would receive certain benefits including retirement benefits, and that “[b]ased on the statements of the IBT intake staff and that they were taking unions dues out of her paychecks,” Plaintiff believed she would be a union member. (Complaint, ¶¶ 9, 12.) Plaintiff fails to affirmatively allege that a staff member of either Local 856 or IBT or any other defendant made a statement with the intent to defraud Plaintiff or what that statement was.

With regard to the union dues in particular, Plaintiff does not allege that anyone told her she would be a union member or that she would receive particular benefits from paying union dues. She only alleges that she was told she would be paying dues, that those dues were taken out of her paycheck, and that she was not a union member. (See Complaint, ¶¶ 9, 12, 16, 21, 22, 28.)

With regard to the retirement benefits, Plaintiff does not allege that she was told she would receive retirement benefits which would vest immediately. She only alleges that she was told she would receive retirement benefits. Plaintiff later alleges that “Plaintiff was told . . . that the deductions for retirement would vest when they were made staff, a label they used but that a minuscule number of union organizers ever obtain.” (Complaint, ¶ 41.) It is unclear who Plaintiff is alleging “told” her this, but if she is referring to Local 856 or IBT, she has contradicted her earlier allegations.

National Labor Relations Act preemption

Local 856’s demurrers to the second cause of action for retaliation in violation of public policy, third cause of action for wrongful termination, and fourth cause of action for unfair competition are SUSTAINED, without leave to amend.

Although leave to amend is routinely granted, it is proper to deny amendment when the complaint shows on its face that it is incapable of being amended. *California Practice Guide: Civil Procedure Before Trial* §7:129.1 (TRG June 2026 update). If Plaintiff seeks leave to amend this cause of action, she should contest the tentative and appear at the hearing (via

personal appearance or Zoom to provide facts that provide a reasonable possibility that he can state a cause of action.

Local 856 argues that these causes of action are preempted by the National Labor Relations Act (NLRA) and the Court agrees.

“The NLRA does not contain express preemption provisions, but the Supreme Court held that ‘two categories of state action are implicitly preempted: (1) laws that regulate conduct that is either protected or prohibited by the NLRA (*Garmon* preemption), and (2) laws that regulate in an area Congress intended to leave unregulated or “controlled by the free play of economic forces” (*Machinists* preemption).’ *Interpipe Contracting, Inc. v. Becerra*, 898 F.3d 879, 887 (9th Cir. 2018) (quoting *Chamber of Com. of the U.S. v. Brown*, 554 U.S. 60, 65, 128 S.Ct. 2408, 171 L.Ed.2d 264 (2008)).” (*Moreno v. UtiliQuest, LLC* (9th Cir. 2022) 29 F.4th 567, 573 (*Moreno*).)

Here, Local 856 asserts *Garmon* preemption based on the following section of the NLRA:

Employees shall have the right to self-organization, to form, join, or assist labor organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection, and shall also have the right to refrain from any or all of such activities except to the extent that such right may be affected by an agreement requiring membership in a labor organization as a condition of employment as authorized in section 158(a)(3) of this title.

(29 U.S.C. § 157.)

Plaintiff alleges as to her second cause of action that she was retaliated against for organizing Field and Staff Organizers to “work towards having Union representation and union membership and benefits” (Complaint, ¶ 54), for questioning the deduction of union dues without union membership (*Id.* at ¶ 57), for not voluntarily contributing to persons running for union office or to the Democratic Republican Independent Voter Education Fund (*Id.* at ¶ 58), and for “requesting that the LOCAL IBT and the parent company paying and directing their work follow California law and other concerns including wages, safety, proper meals when traveling, proper breaks, and other concerns.” (*Id.* at ¶ 60.)

Plaintiff alleges that “IBT staff managers expressed anger” in response to some of the above activities. (*Id.* at ¶¶ 57-58.) She also alleges that “[t]he retaliation consisted of less safe work assignments, longer work days, assignments off the clock, denial of vacation time, denial of equal days off, and threats that included being fired.” (*Id.* at ¶ 61.) She further alleges that “she was retaliated against with threats and eventually fired in retaliation for engaging in union organizing.” (*Id.* at ¶ 62.)

Plaintiff alleges as to her third cause of action that “Plaintiff sought representation for her and her cohorts on her own time,” and that she “complained about unsafe working conditions, and she complained about other problems and improper conduct, unequal pay, and or unlawful practices

of the defendants and incidents.” (Complaint, ¶¶ 66-67.) She alleges that “[n]ot long after the unionizing vote ended . . . plaintiff was terminated.” (*Id.* at ¶ 68.)

Plaintiff alleges as to her fourth cause of action that IBT staff “told plaintiff that she violated policy so as to make her a pariah and prevent her from obtaining similar work at other unions.” (Complaint at ¶ 74.) Plaintiff also alleges that staff managers and supervisors told Plaintiff’s colleagues not to associate with her or they would face the same consequences, and others were told that Plaintiff and IBT had come to an agreement, such that Plaintiff was perceived as selfish. (*Id.* at ¶ 75.) Plaintiff alleges that these actions by Defendants violate BPC § 17200 “since it disadvantages other unions who compete in the workplace with the IBT.” (*Id.* at ¶ 77.)

Plaintiff’s second and third causes of action fall squarely within the National Labor Relations Board’s (NLRB) jurisdiction over the right to form labor organizations and to engage in concerted activities for the purpose of collective bargaining or other mutual aid or protection. Plaintiff’s allegations in the fourth cause of action are somewhat unclear but also appear to be based on Defendants having retaliated against Plaintiff for her organizing activities. Therefore, they also fall within the NLRB’s jurisdiction under 29 U.S.C. § 157.

As stated in *Moreno, supra*, 29 F.4th at p. 575: “Moreno’s central theory in his whistleblowing retaliation and wrongful termination claims is that he was terminated for advocating on behalf of his fellow employees after UtiliQuest refused to give them a promised raise. In *Bassette*, we held that an employee’s wrongful termination claim against her employer was preempted because the employer’s alleged conduct arguably violated the NLRA. 25 F.3d at 761. The same reasoning applies in this case because UtiliQuest’s conduct arguably violated the NLRA. Thus, there is clear potential for conflict between state law and federal policy.”

This finding is further supported Plaintiff’s allegations in her Complaint that “Plaintiff also made a complaint to the National Labor Relations Board. The process was feudal [sic] and the plaintiff on information and belief herein alleges that the IBT never settles with their own former Union Field Organizers.” (Complaint, ¶ 9.) Plaintiff also states that “Plaintiff has timely exhausted her administrative remedies and timey [sic] filed these causes of action and the plaintiff possesses a right to sue letter from the California Civil Rights Division and also an email from The National Labor Relations Board.” (*Id.* at ¶ 10.)

Moreno, supra, 29 F.4th at p. 576 states: “In determining whether adjudicating a state claim risks interference with the NLRB’s jurisdiction, we inquire whether ‘the controversy presented to the state court is identical with that which could be presented to the Board.’ *Belknap, Inc. v. Hale*, 463 U.S. 491, 510, 103 S.Ct. 3172, 77 L.Ed.2d 798 (1983). When controversies are identical, ‘a state court’s exercise of jurisdiction necessarily involves a risk of interference with the unfair labor practice jurisdiction of the Board.’ *Sears, Roebuck & Co.*, 436 U.S. at 197, 98 S.Ct. 1745. Importantly, the *claims* need not be identical, but rather the focus is on whether the ‘controversy presented’ is identical. A finding of *Garmon* preemption does not require ‘that a plaintiff have a certain remedy before the Board, or even that the Board will hear the claim in the first place.’ *Bassette*, 25 F.3d at 759–60.”

Therefore, the demurrer to the second, third, and fourth cause of action by Local 856 is sustained.

Fifth cause of action - PAGA

Local 856's demurrer to the fifth cause of action is SUSTAINED, with leave to amend.

Local 856 argues that Plaintiff's PAGA (Private Attorney General Act) claim fails because Local 856 was not her employer. (MPA, p. 13:17-23.) As discussed above, the Court has found that Plaintiff adequately alleged an employment relationship with Local 856. Therefore, the demurrer fails on this ground.

Local 856 also argues that Plaintiff failed to plead that she met the requirements for filing a PAGA claim, specifically, giving notice to her employer and the Labor and Workforce Development Agency. (MPA at pp. 13:24-14:10; citing Lab. Code § 2699.3.)

Lastly, Local 856 argues that Plaintiff's minimum wage, overtime, and meal and rest break claims fail because they are not alleged with sufficient particularity, and that the timely wage and wage statement claims fail because they are derivative. (MPA, p. 14:5-7.) Local 856 also argues that the claim for business expense reimbursement is not pled with any facts as to Local 856. (Id. at p. 14:7-8.)

Plaintiff has failed to allege compliance with Labor Code requirements for her PAGA claim and the demurrer is sustained on this ground. Labor Code section 2699.3 provides that "[t]he aggrieved employee or representative shall give written notice by online filing with the Labor and Workforce Development Agency and by certified mail to the employer of the specific provisions of this code alleged to have been violated, including the facts and theories to support the alleged violation." Plaintiff does not state anywhere in her Complaint that she complied with this requirement. In her opposition, she appears to confuse the Labor and Workforce Development Agency with the California Civil Rights Division, a different agency because she states that she filed an administrative action asserting a PAGA claim with the California Civil Rights Division and received a right to sue letter. Plaintiff has not provided any authority that this is sufficient to comply with PAGA pre-filing requirements, nor does this Court believe there is authority to that effect. Labor Code section 2699.3 specifically requires notice to the Labor and Workforce Development Agency, which has a database with all PAGA cases filed.

Sixth cause of action – Equal Pay Violation

Local 856's demurrer to this cause of action is SUSTAINED, with leave to amend.

Plaintiff alleges the following in support of her Equal Pay Violation cause of action:

- "The defendants promoted and paid men more than plaintiff who had less qualifications, some less experience, and less success. Plaintiff was directed by defendants to train and teach the IBT organizing method to some of these men." (Complaint, ¶ 105);
-

-
- “As a result of the advancement of men with less time on the job who were less successful as organizers, plaintiff suffered emotional stress, ageist, humiliation and extreme frustration by the gender-based pay discrimination.” (*Id.* at ¶ 106)

This is insufficient to allege the cause of action. Plaintiff does not allege a statutory basis for this claim. *Allen v. Staples, Inc.* (2022) 84 Cal. App. 5th 188, lays out the statutory scheme for California equal pay violations:

“Section 1197.5 is California's equal pay law. Its operative subsection states: ‘No employer shall pay any individual in the employer's employ at wage rates less than the rates paid to employees of the opposite sex in the same establishment for equal work on jobs the performance of which requires equal skill, effort, and responsibility, and which are performed under similar working conditions, except where the payment is made pursuant to a seniority system, a merit system, a system which measures earnings by quantity or quality of production, or a differential based on any bona fide factor other than sex.’ (§ 1197.5, subd. (a).)” (*Green v. Par Pools, Inc.* (2003) 111 Cal.App.4th 620, 622–623, 3 Cal.Rptr.3d 844.)

(*Allen*, 84 Cal.App.5th at pp. 193-194.) Plaintiff has failed to allege facts that the promotions were based on gender rather than any other potential factor or that the men who were promoted were performing substantially similar work to Plaintiff under substantially similar conditions.

Seventh cause of action – Sexual Harassment

Local 856’s demurrer to this cause of action is SUSTAINED, with leave to amend.

Plaintiff again fails to allege a statutory basis for this cause of action. Sexual harassment claims in California are governed by the Fair Employment and Housing Act (FEHA) but can be interpreted with reference to federal standards. (*Kelley v. The Conco Companies* (2011) 196 Cal.App.4th 191, 202, n. 7 (*Kelley*).) *Kelley* defined the elements of a state sexual harassment claim as follows:

FEHA’s “ ‘prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex.’ [Citation.]” (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 277, 42 Cal.Rptr.3d 2, 132 P.3d 211 (*Lyle*).) Claims of a hostile or abusive working environment due to sexual harassment arise when a workplace is “permeated with ‘discriminatory intimidation, ridicule, and insult[]’ [citation] that is ‘sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment[]’ [citation]....” (*Harris v. Forklift Systems, Inc.* (1993) 510 U.S. 17, 21, 114 S.Ct. 367, 126 L.Ed.2d 295.)

“The elements of such a cause of action are: ‘(1) plaintiff belongs to a protected group; (2) plaintiff was subject to unwelcome sexual harassment; (3) the harassment complained of was based on sex; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior.’ [Citation.]” (*Jones v. Department of Corrections & Rehabilitation* (2007) 152 Cal.App.4th 1367, 1377, 62 Cal.Rptr.3d 200.)

(*Kelley* at 202, footnotes omitted.) The U.S. Supreme Court held under 42 U.S.C. § 2000e *et seq.* that “[a]n employer is negligent with respect to sexual harassment if it knew or should have known about the conduct and failed to stop it.” (*Burlington Indus., Inc. v. Ellerth* (1998) 524 U.S. 742, 759.)

Plaintiff has failed to meet the pleading standard of putting Local 856 on notice of the claims it must defend against. Plaintiff alleges harassment by “co-workers and supervisors,” but then refers to “certain male workers,” “the man,” “all the male workers,” and “the male worker.” (See Complaint, ¶¶ 110, 111, 112, 116, 120.) The allegations appear to conflate several incidents of harassment and leave unclear who allegedly did what to Plaintiff. Plaintiff also alleges that “the employer” did not investigate or make a report about the alleged incidents, but it is unclear who “the employer” is. As found earlier in this ruling, Plaintiff properly alleged joint employer allegations against IBT and Local 856, so she must either do the same here or identify which of the two was responsible for this cause of action.

Plaintiff has ten (10) days from service of written notice of entry of order to file and serve a First Amended Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Local 856 shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 8

26-UDL-00978

EVGENY VLASOV VS. DEFENDANT

EVGENY VLASOV
DEFENDANTPRO SE
PRO SE

DEMURRER

TENTATIVE RULING:

The defendant demurrer to plaintiff's complaint is **OVERRULED**, as follows:

A party who is not represented by counsel may consent to electronic service. (Code Civ. Proc. section 1010.6, subd. (c)(2)-(3).) Self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." (Cal. Rules of Court, rule 2.251(c)(3)(B).) Defendant's proof of service of the demurrer indicates that it was served only electronically on plaintiff, who is self-represented. There is no evidence that plaintiff has consented to electronic service. Therefore, plaintiff did not receive proper notice of the hearing. (*Id.*, rule 3.1110(b)(1); Code Civ. Proc., § 1014). Thus, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

However, even if the merits of the demurrer were to be reached, it is unsupported and so would be overruled.

"A demurrer shall distinctly specify the grounds upon which any of the objections to the complaint... are taken. Unless it does so, it may be disregarded." (Code Civ. Proc, § 430.60.) A party asserting a demurrer must provide an adequate memorandum of points and authorities supporting the challenges which are raised in the demurrer, and in the case of a general demurrer all grounds not supported in such a memorandum are waived. (Cal. Rules of Court, rule 3.1113(a), (b).)

Here, defendant's demurrer states only that "[t]he Complaint fails to state facts sufficient to constitute a cause of action (CCP § 430.10(e))." This states an objection to the complaint but does not specify the grounds upon which that objection is taken. No supporting memorandum of points and authorities has been filed.

If the court were to reach the merits of Defendant's unsupported Demurrer, it would accordingly be **OVERRULED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant

to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.



POSTED: 3:00 PM